

TENTATIVE RULINGS for LAW and MOTION

May 5, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary**
Case No. CV2025-2253

Hearing Date: **May 5, 2026** **Department Eleven** **9:00 a.m.**

Motion for relief from waiver:

Defendants Donna Gary and Dielji, Inc.'s motion for relief from waiver of objections is **GRANTED**. (Code Civ. Proc., §§ 2030.290, 2031.300.) Defendants have shown that they served responses in substantial compliance with the applicable discovery statutes. (Code Civ. Proc., §§ 2030.290, subd. (a)(1), 2031.300, subd. (a)(1); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 782; Finnerty decl., ¶ 8, Exhibit A-D.) Further, defendants have established that their failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a)(2), 2031.300, subd. (a)(2); see also *City of Fresno v. Superior Court* (1988) 205 Cal.App.3d 1459, 1467; *Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921; Finnerty decl., ¶¶ 5-7; Gary decl., ¶¶ 3-4; Finnerty decl. ISO reply, ¶¶ 5-7.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

Discovery motions:

On April 22, 2026, pursuant to this Court's order, plaintiff Davis Medical Venture LLC's counsel filed a declaration, identifying the discovery requests remaining at issue if the Court granted defendants' relief from waiver. (Murtha decl. [filed April 22, 2026], ¶ 14.) As the Court granted defendants' motion for relief from waiver, it must consider these remaining issues. (*Ibid.*) However, the Court finds that plaintiff did not adequately meet and confer as to the outstanding requests before it filed these motions. (Code Civ. Proc., §§ 2016.040, subd. (a), 2030.300, subd. (b)(1), 2031.310, subd. (b)(2); Murtha decls. [filed February 5, 2026], ¶¶ 11-17, Exhibits F & G.)

Therefore, on the Court's own motion, plaintiff's six motions to compel further response to discovery requests (filed February 5, 2026) are **CONTINUED** to **June 30, 2026**, at 9:00 a.m. in Department Eleven. The parties are **DIRECTED** to further meet and confer regarding the issues identified in the Ms. Murtha's declaration – in person, by videoconference, or by telephone – by May 26, 2026. (Code Civ. Proc., § 2016.040, subd. (a); Murtha decl. [filed April 22, 2026], ¶ 14.)

By June 9, 2026, plaintiff **MUST** file: (1) a new meet and confer declaration regarding the parties' meet and confer efforts and any remaining issues for the Court's determination; and (2) a separate statement regarding discovery still at issue. (See Cal. Rules of Court, rule 3.1345.)

By June 23, 2026, defendants may file a responsive meet and confer declaration and separate statement.

If there are no remaining issues, plaintiff is **DIRECTED** to request that the June 30, 2026, hearing be vacated.

TENTATIVE RULING

Case: **FTNT Holding, LLC v. Khan**
Case No. CV2025-1747

Hearing Date: **May 5, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendant and cross-complainant Zahra Khan's motion for leave to file proposed second amended cross-complaint is **CONTINUED** to **May 14, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: **Hamilton v. Amazon.com, Inc.**
Case No. CV2026-0814

Hearing Date: **May 5, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiffs Tina Hamilton and Stacey Hite's unopposed motion for preliminary approval of class and collective action settlement. (Cal. Rules of Court, rule 3.769(c), (d).)

TENTATIVE RULING

CASE: **Lewis v. Cemex, Inc. et al.**
 Case No. CV2023-1829

Hearing Date: **May 5, 2026** **Department Eleven** **9:00 a.m.**

Motion to bifurcate:

Defendants Cemex, Inc., Cemex Construction Materials Pacific, LLC, and Bert Swartz's (collectively, "defendants") unopposed motion to bifurcate punitive damages claim is **GRANTED**. (Civ. Code § 3295, subd. (d); Code Civ. Proc., §§ 598, 1048; Evid. Code, § 352.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to continue trial:

Defendants' motion to continue trial is **GRANTED**. (Cal. Rules of Court, rule 3.1332.) The current dates for the trial readiness conference and trial are **VACATED**.

Parties are **DIRECTED TO APPEAR** to select a new trial date.

TENTATIVE RULING

Case: **Morgan Creek Construction, Inc. v. Swinerton Builders, Inc.**
Case No. CV2025-2092

Hearing Date: **May 5, 2026** **Department Fourteen** **9:00 a.m.**

On March 27, 2026, defendant and cross-complainant Swinerton Builders, Inc. served its amended responses to plaintiff and cross-defendant Morgan Creek Construction, Inc.'s requests for production of documents (set one). (Harris decl., ¶ 2, Exhibit B.) After the service of these amended responses, plaintiff failed to adequately meet and confer before filing this motion (on April 3, 2026). (*Id.*, ¶¶ 3-4; Code Civ. Proc., § 2016.040, subd. (a) ["A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion"], emphasis added.)

Therefore, on the Court's own motion, plaintiff's motion to compel further response to request for production, set one is **CONTINUED** to **July 7, 2026**, at 9:00 a.m. in Department Fourteen.

The parties are **DIRECTED** to further meet and confer regarding the issues raised by plaintiff's motion – in person, by videoconference, or by telephone – by May 28, 2026. (Code Civ. Proc., § 2016.040, subd. (a).)

By June 11, 2026, plaintiff **MUST** file: (1) a new meet and confer declaration regarding the parties' meet and confer efforts and any remaining issues for the Court's determination; and (2) a separate statement regarding discovery still at issue. (See Cal. Rules of Court, rule 3.1345.)

By June 25, 2026, defendant may file a responsive meet and confer declaration and separate statement.

If there are no remaining issues, plaintiff is **DIRECTED** to request that the July 7, 2026, hearing be vacated.